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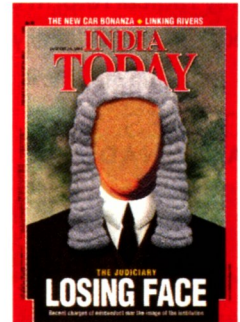
From the editor-in-chief

There are four trusted pillars that Indian democracy rests on: the legislature, the executive, the press and the judiciary. The effective functioning of any or all of these is a barometer to a healthy nation with accountability, transparency, and protection of property, life, liberty and justice. Naturally, the judiciary has the most crucial role in ensuring that. But what happens when the judiciary itself comes under scrutiny? That assumes significance with the controversy over the issue of making judges' assets public. It's a sensitive issue but what has changed in recent times is the image of the judiciary. At least 34 sitting judges are under the scanner in Uttar Pradesh for alleged involvement in a court employees' provident fund scam. A botched home-delivery of Rs 15 lakh bribe money to a sitting judge of the Punjab and Haryana High Court was another recent case of judicial corruption. Then there is Justice Soumitra Sen of the Kolkata High Court who faces impeachment for allegedly appropriating Rs 32 lakh as court-appointed receiver in a lawsuit.

The issue of accountability in the judiciary was highlighted by the prime minister himself, when he addressed chief justices and implored them to make the Indian judicial system "ar-rer free" and called for a rethink on judicial reforms. What has created the most heated debate is the fact that many judicial activists and even sitting judges have openly raised questions on judicial stonewalling that prevents any attempt to reform the judiciary. While much of the focus has been on making assets public, the larger perennial issue is the huge backlog of cases that actually encourages judicial corruption. Over 30 million pending cases clog the country's legal system which has increased by 1.3 million since last year.

The sad truth is that any attempt to make the judiciary more accountable comes up against political expediency. The Government tried to push the Judges (Asset) Bill during the last Parliament session. The bill, meant to instill transparency into the judiciary, faced opposition from MPs across the spectrum on crucial aspects of its wording. The bill proposes that judges would have to declare their assets at the time of taking oath and file annual statements to chief justices with copies to the respective state governments and the Centre. What is worrying many is that the Government wants to keep the information confidential. The bill says that the information should not be in the public domain and seeks to punish anybody who leaks it.

Our cover story this issue looks at the reasons behind the sharp focus the judiciary has come under recently. Special Correspondent Shafi Rahman, who has been following the judiciary closely, has spoken to a wide range of judicial experts and sitting and retired judges to look at the burning issues and possible solutions, including an in-depth interview with Chief Justice K.G. Balakrishnan. Who will judge the judges is an age-old question but with the judiciary under pressure to change, it has clearly acquired a new urgency.



OUR JANUARY
2003 COVER

Aaron Purie
(Aron Purie)